

CRIMINAL LAW LECTURE NOTE

Stealing and Other Related Offences

Introduction

One of the major goals of criminal law is the protection of property. One of the means that this is made possible is through the offence of stealing. The law therefore prohibits the taking of a property belonging to another person without the person's consent given freely. The Criminal Code (CC) and Penal Code (PC) criminalize the act of stealing.

Having said this, what then is stealing?

Stealing, which may also be referred to as **theft**, is the wrongful taking or conversion of property belonging to another. According to **Section 383(1) of the Criminal Code**, when a person fraudulently takes anything capable of being stolen, or fraudulently converts to his own use or the use of any other person anything capable of being stolen, he is said to steal that thing.

The **Penal Code** defines theft instead of stealing in **Section 286(1)** as: whoever intending to take dishonestly any movable property out of the possession of any person without that person's consent, moves that property in order to take it is said to commit theft. It is also an offence for anyone to unlawfully treat or deal with the property of another person as your own.

In all cases, the intention to permanently deprive the owner of such property or the person who is in rightful possession of it must exist to amount to stealing.

What Constitutes Stealing?

It is an established principle that for a conduct to constitute stealing, some elements must be present. Below are some of these elements:

(1) Taking

By virtue of **Section 383(6) of the Criminal Code**, a person shall not be deemed to take a thing unless he moves the thing or causes it to move. Again, under **Section 286(2) of the Penal Code**, a moving affected by the same act causing severance may be a theft. To constitute a 'taking' it is not necessary for the thief to take the thing completely into his possession. Rather, he is deemed to have taken a thing if he moves it or causes it to move. For instance, if Ben with the intention to steal a purse from John's bag begins to take out the purse when James suddenly enters the room and he drops it back into the bag, Ben's conduct amounts to stealing.

(2) Conversion

In the absence of taking, there must be a 'conversion' of property. The word conversion is not defined in the Criminal Code; therefore, it has been suggested that conversion under Section 383 has the same meaning as that under the common law. Conversion in this sense is found in the case of **Lancashire and Yorkshire RLY Co v Mcnicol (1918) 88**, which held that conversion means dealing with goods in a manner inconsistent with the right of the true owner, provided there is an intention on the part of the defendant to deny the owner's right or assert a right which is inconsistent with the right of the true owner.

Conversion therefore can arise as a result of destruction, sale, pledge, alteration, or use of the property in a manner inconsistent with the right of the owner (See **R v Pitham and Hehl (1977) 65 Cr App R 45**). By virtue of Section 383, these acts of conversion can only amount to stealing if done with one of the fraudulent intents

specified in **Section 383(2) (See Ekpenyong)**. The position is the same under the Penal Code, although the word 'dishonesty' is used instead of the word 'fraudulent' used in the Criminal Code. Conversion must be to the use of any other person or to the use of the accused person.

It is important to note at this point that it is not every taking or conversion that amounts to stealing. For instance, if someone picks up an item merely to ascertain what it is, that is merely an acquisition taking which does not constitute stealing. Furthermore, if he takes it with a mistaken belief that it is his own, he can raise the defence of honest claim of right under Section 23. He can also raise the defence of mistake under Section 25 if at the time of taking he was labouring under an honest and reasonable mistake of fact. For taking or conversion to amount to stealing, therefore, there must be an element of fraud.

(3) Intention to Steal

Section 383 of the Criminal Code sets out six intents, any one of which will make a taking or conversion fraudulent:

- (a)** An intent to permanently deprive the owner of the property (a temporary deprivation will not amount to stealing; **see R. v. Eason**). You must note that it will still amount to stealing if you take someone's property with the intention to permanently deprive the owner of it, notwithstanding that you thereafter changed your mind and returned it.
- (b)** An intent to permanently deprive any person who has any special property in the thing of such property.
- (c)** An intent to use the thing as a pledge or security. For instance, if someone uses another person's property as security for a loan, it will be deemed that you fraudulently took the property.

(d) An intent to part with the property in a condition as to its return, which the person taking or converting it may be unable to perform.

(e) An intent to deal with it in such a manner that it cannot be returned in the condition in which it was at the time of the taking or conversion.

(f) In the case of money, an intent to use it at the will of the person who takes or converts it, although he may intend afterwards to apply the equivalent amount to the owner.

(g) In the case of lost property, if you find such property and convert it, this will not be regarded as fraudulent if at the time of converting it you did not know who the true owner was or if you reasonably believed that the owner could not be found.

Punishment for Stealing

The punishment for stealing where no other punishment is stipulated by law is **three years imprisonment (Section 390 CC)**. There are, however, stiffer penalties up to imprisonment for life where the thing stolen concerns wills, postal matters, or matters relating to public property, etc. (See Section 390(1)–(11) of the Criminal Code).

Under the Penal Code, theft attracts a maximum imprisonment for five years, or fine, or both.

Things Capable of Being Stolen

It is crucial to note that not everything is capable of being stolen. Every inanimate thing whatever which is the property of any person and which is movable, is capable of being stolen. **Section 382 of the Criminal Code** contains several examples of such things. According to the section, every non-living thing which is

the property of another and is capable of being made movable is capable of being stolen.

Under **Section 286(2) of the Penal Code**, electricity current is capable of being stolen by being abstracted, diverted, or consumed. The section also contains provisions about tame animals and animals wild by nature.

Living things like animals, whether domestic, wild by nature, or tamed (such as dogs, monkeys, etc.), are capable of being stolen since the definition of property includes everything animate or inanimate capable of being the subject of ownership (Section 1 CC). However, if wild animals are in the enjoyment of their natural habitat, they are not capable of being stolen, but their dead bodies are. It means that if a hunter captures a wild animal in the wild, he cannot be said to have stolen it unless the forest is a reserved one where hunting is prohibited.

Again, it is important to note that land cannot be stolen because it is an immovable property. Also, property which is abandoned or not capable of being owned (such as a corpse) is not capable of being stolen because it cannot be a subject of ownership. However, a corpse can possess such peculiar attributes as to justify its preservation on scientific grounds, such as where a person has performed some skilful work on the corpse in his lawful possession.

Burglary and Housebreaking

The law makes the act of breaking and entering into the house of another with the intention of committing a crime an offence.

By virtue of **Section 411 of the Criminal Code**, any person who breaks and enters the dwelling-house of another with the intent to commit a felony therein, or having entered the dwelling-house of another with a like intent or having committed a

felony in a dwelling-house of another, breaks out of the dwelling-house, is guilty of a felony.

If the offence is committed in the daytime, it is housebreaking and is punishable with imprisonment for 14 years. If it is committed at night, it is called burglary and is punishable with imprisonment for life.

Elements of Housebreaking

The essential ingredients to be proved in the offence of housebreaking are:

- That the building in question is a dwelling-house;
- Intent to commit a felony therein;
- That there is a breaking in and/or out; and
- Entry into the building.

(1) Breaking

Breaking is an essential ingredient of both burglary and housebreaking. The act of breaking in can be committed by the actual breaking of an external or internal part of a building, or by unlocking, pulling, pushing, or lifting of a door or window shutter which is ordinarily used for closing or opening a building, or used for giving passage to the building or from one part of the building to another.

There is also a breaking in where entrance into the building is obtained by means of a threat or by trick. For instance, if a person intending to commit a crime in a house knocked on the door and pretended to be looking for someone in the premises, inducing someone to open the door, and steals something in the process, this will amount to housebreaking. It is not the same as where the door is left open and a person enters to steal. Since you cannot claim that the person breaks in, this cannot amount to housebreaking; nor where the door is partially open and the thief

pushes it further in order to gain entrance into the building. However, it will amount to breaking in if entrance is obtained into a building by collusion with any person in the building, or if entrance is gained through the chimney or any small opening in the building left open for any use other than as a means of entrance.

(2) Entering

What will constitute entering is covered by **Section 410 of the Criminal Code**, which states that 'a person is said to enter a building as soon as any part of his body or any instrument used by him is within the building.' In **R. v. Apesi**, it was held that if while opening a window the offender's hand or finger enters the room of his victim, this will be sufficient entry. However, if an instrument is projected by the accused person into the building, it must be actually used to commit or attempt to commit the felony from the building (such as where the accused used an instrument to draw out a suit, handset, etc., from the building).

(3) Dwelling-House

Section 1 of the Criminal Code defines a dwelling-house to include any building or structure or part of a building or structure which is for the time being kept by the owner or occupier for the residence therein of himself, his family, or servants, or any of them. The fact that there was nobody living in the building at the precise time is immaterial. The deciding factor whether a building is a dwelling-house or not is the use to which the building in question is put, and not what it was originally built for. Thus, a caravan or houseboat used as a residence will qualify as a dwelling-house for this purpose. In **R. v. Halloran**, it was held that a motel unit occupied by a lodger for a week would qualify as a dwelling-house within the meaning of this rule.

(4) Intent to Commit Felony

This is basically the mens rea of the offence of housebreaking or burglary. The accused person must intend to commit a felony (a serious crime) within the building. It need not necessarily be the intent to steal anything from the building; the intent to commit any crime (e.g., murder, arson, etc.) must be present at the time of breaking into the building. If such intent is lacking at that material time and is only formed after the breaking in and entry into the building is completed, there is no housebreaking.

Punishment for Housebreaking and Burglary

The punishment for housebreaking is imprisonment for fourteen years, and for burglary, it is **imprisonment for life (Section 411 CC)**. An attempt to commit the offence of housebreaking attracts seven years imprisonment, while an attempt to commit burglary attracts fourteen years imprisonment (Section 412 CC). Breaking in/out of other buildings (non-dwelling houses) carries specific statutory penalties.